

MAINTENANCE PENDING SUIT (MPS)

ENFORCEMENT TIMELINE AND PARTICIPATION IMPACT

(with NZ1 references)

Case: BV20D01752 / AC-2025-LON-004293

Claimant: Nadia Zahmoul

Period covered: 28 February 2024 – June 2024

Background

- An order for **Maintenance Pending Suit (MPS)** was in force following the final hearing.
- The trial concluded on **28 February 2024**.
- The MPS order remained legally operative pending decree absolute.
- The Claimant lost legal representation immediately after trial and participation measures were withdrawn.

Chronology

28 February 2024

- Final hearing concludes.

6 March 2024

- Claimant formally notifies the court that she is acting in person from this date onwards, having lost solicitors and counsel.

(NZ1 p. 006)

7 March 2024

- Claimant writes to the judge explaining loss of legal representation, severe financial hardship, and seeking intervention.
- This marks the **start of repeated requests for enforcement of the MPS order**.

(NZ1 p. 006)

March – early April 2024

- Claimant sends repeated emails to the judge seeking **enforcement of the MPS order**, explicitly linking non-payment to inability to participate and risk to welfare.

(NZ1 pp. 011–023)

8–9 April 2024

- Multiple urgent requests for enforcement of MPS, citing exposure to danger and inability to meet basic needs for herself and the children.

(NZ1 pp. 011–013)

12 April 2024

- Claimant reiterates request for enforcement and raises lack of equal footing in proceedings.

(NZ1 p. 018)

17 April 2024

- Claimant emails stating she has no funds for food and is a victim of extreme economic abuse, again seeking enforcement of MPS.

(NZ1 pp. 022–023)

18 April 2024

- **Judgment handed down.**

(NZ1 p. 027)

- Claimant seeks urgent enforcement of MPS on the same day, rebutting any suggestion that MPS was raised only after judgment.

(NZ1 p. 024)

19–26 April 2024

- Claimant repeatedly seeks assistance with MPS enforcement, housing, food, groceries, and legal advice.

(NZ1 pp. 030, 037, 039)

30 April 2024

- Claimant seeks urgent enforcement of MPS and equal footing, stating she cannot participate without food or accommodation.

(NZ1 pp. 046–065)

- Judge responds that enforcement requires a formal application.

(NZ1 p. 056)

- Claimant immediately explains she does not know which form to use and is struggling with debilitating autism and PTSD symptoms.

(NZ1 p. 058)

2 May 2024

- Claimant files an **urgent enforcement application (Form D50K)** seeking enforcement of the MPS order.
(NZ1 p. 069)
- On the same day, multiple emails explain that economic abuse and non-payment of MPS are preventing participation and basic functioning.
(NZ1 pp. 070–077)

3 May 2024

- Claimant again requests enforcement and forwards the application.
(NZ1 p. 106)
- On the same day, opposing counsel submits a **draft final order** to the court introducing a new paragraph dealing with historic periodical payments, without the Claimant’s participation or consent.
(NZ1 p. 107)

7 May 2024

- Court states that no decision has yet been taken on the enforcement application and that it has not been issued.
(NZ1 p. 136)
- Claimant responds explaining she cannot draft orders or submissions without food, accommodation, or legal assistance, and that MPS is essential to participation.
(NZ1 pp. 140–142)

Mid–late May 2024

- Multiple drafts of the final order are prepared and revised by the respondent’s legal team.
- Claimant repeatedly states she is **unable to engage in order-drafting** due to economic duress and non-enforcement of MPS.
(NZ1 pp. 140–142)

14 May 2024

- A provision remitting MPS arrears is introduced into the draft final order **without notice or hearing**.

24–28 May 2024

- Final order is sealed, including remission of MPS arrears, without prior determination of the Claimant's enforcement application.

March – June 2024 (overall)

- Across this period, the Claimant makes **over 200 explicit references to MPS** in open correspondence with the court and parties, consistently linking non-payment to inability to participate.
(See MPS Open Correspondence Bundle)

Participation Impact

- Non-enforcement of MPS resulted in:
 - loss of subsistence (food, accommodation, basic necessities),
 - loss of legal representation,
 - inability to prepare submissions or engage in order-drafting,
 - effective exclusion from post-judgment processes.
- The contemporaneous record shows that MPS was repeatedly identified as a **participation-preserving mechanism**, not merely a financial issue.

Key Point for the Court

The documentary record (NZ1) demonstrates that:

- enforcement of MPS was sought **from 7 March 2024 onwards**;
- this occurred **before** judgment was handed down on 18 April 2024; and
- non-enforcement had a **direct, documented causal impact** on the Claimant's ability to participate, including the ability to engage in drafting the final order.